

		under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a). Defendant Aileen Pham did not oppose or respond to either of the instant motions and, thus, has not provided any substantial justification or pointed to any circumstances that would make the imposition of sanctions unjust. However, some of the attorney’s fees requested as sanctions are unnecessary in light of the fact that Plaintiff did not incur any attorney’s fees to review an opposition or prepare a reply. The court will reduce the amount of sanctions accordingly. Plaintiff shall give notice of this ruling.
7	Mejico vs. Newland Garden Apartments, L.P. 30-2023-01337727	<u>Motion to Quash</u> Pursuant to the Notice of Withdrawal of Motion to Quash Service of Summons and Complaint filed December 21, 2023, (ROA 35), this matter is taken OFF CALENDAR.
8	National Funding, Inc. vs. Hard Rock Exteriors LLC 30-2023-01334334	<u>Motion for Summary Judgment</u> Plaintiff National Funding, Inc.’s Motion for Summary Judgment is GRANTED. The court ORDERS that judgment shall be entered in favor of Plaintiff National Funding, Inc. and against Defendant Hard Rock Exteriors LLC dba Nu Normal as to the 1st Cause of Action of the Complaint in the amount of \$374,191.91 plus any prejudgment interest, reasonable attorney’s fees, and costs allowed by law. The court ORDERS that judgment shall be entered in favor of Plaintiff National Funding, Inc. and against Defendant Robert Bitz as to the 2nd Cause of Action of the Complaint in the sum of \$374,191.91 plus any prejudgment interest, reasonable attorney’s fees, and costs allowed by law.